

MASTER SERVICES AGREEMENT

This Master Services Agreement is entered into between Nordwind Industrie GmbH (the "Customer"), registered at Hafenstrasse 14, 20359 Hamburg, and Kestrel Field Maintenance BV (the "Supplier"), registered at Havenweg 220, 3011 Rotterdam.

1. SCOPE OF SERVICES

The Supplier shall provide preventive and corrective maintenance for the Customer's packaging lines at the plants listed in Schedule 1. The Supplier shall perform the Services with the skill and care reasonably expected of a specialist maintenance contractor.

2. TERM

This Agreement is effective as of 1 September 2024 and shall remain in force until 30 September 2026 (the "Initial Term").

3. RENEWAL

Upon expiry of the Initial Term this Agreement shall automatically renew for successive periods of twelve months, unless either party gives 90 days written notice of non-renewal before the end of the then current term. Each renewal is on the terms in force at the date of renewal.

4. TERMINATION

Either party may terminate this Agreement for convenience by giving 14 days written notice to the other party. Either party may terminate this Agreement with immediate effect if the other party commits a material breach and fails to remedy the breach within 30 days of written notice. The Supplier shall return all Customer property within 10 business days of termination.

5. CHARGES AND PRICING

The prices for the Services are set out in the rate card in Schedule 2 and are exclusive of VAT.

Prices are firm for the Initial Term. Thereafter the Supplier may increase prices once per contract year by no more than the change in the Harmonised Index of Consumer Prices, on 60 days written notice.

6. PAYMENT TERMS

The Customer shall pay all undisputed invoices net 90 days from the date of invoice. Invoices must quote the purchase order number. A 2% discount applies if paid within 10 days. The Customer

shall not be obliged to pay any invoice that does not quote a valid purchase order number.

7. SERVICE LEVELS

The Supplier shall respond to a Priority 1 fault within 4 hours and shall restore service within

24 hours. The Supplier shall maintain an availability of 98.5% measured monthly across all covered equipment.

8. LIQUIDATED DAMAGES

If the Supplier fails to meet the response time in clause 7, the Supplier shall pay liquidated

damages of EUR 2,500 per day of delay, capped at 10% of the charges for the affected month.

The

parties agree these liquidated damages are a genuine pre-estimate of loss and are the Customer's

sole financial remedy for delay.

9. LIMITATION OF LIABILITY

The total aggregate liability of each party under this Agreement shall not exceed the total charges paid in the twelve months preceding the event giving rise to the claim. Neither party is

liable for indirect or consequential loss, or for loss of profit. Nothing in this clause limits

liability for death, personal injury, or fraud.

10. INDEMNIFICATION

The Supplier shall indemnify and hold harmless the Customer against all third party claims arising from the Supplier's negligence. The Customer shall indemnify the Supplier against third

party claims arising from the Customer's written instructions.

11. CONFIDENTIALITY

Each party shall keep the other party's Confidential Information confidential and shall not disclose it to any third party, for a period of five years after the end of this Agreement.

Each

party shall return or destroy Confidential Information on request.

12. DATA PROTECTION

Where the Supplier processes personal data on behalf of the Customer, the Supplier acts as data

processor and the Customer as data controller within the meaning of the General Data Protection

Regulation. The parties shall enter into the data processing agreement in Schedule 4. The Supplier shall notify the Customer of any personal data breach without undue delay and in any

event within 48 hours.

13. INSURANCE

The Supplier shall maintain public liability insurance with a minimum cover of EUR 5,000,000 per occurrence and professional indemnity insurance of EUR 2,000,000 in the aggregate, and shall provide a certificate of insurance on request.

14. AUDIT RIGHTS

The Customer may audit the Supplier's records relating to the Services once per calendar year, on 20 business days written notice, during normal business hours and at the Customer's own cost.

15. ASSIGNMENT

Neither party may assign this Agreement without the prior written consent of the other party, which shall not be unreasonably withheld. Either party may assign to an affiliate on notice.

16. FORCE MAJEURE

Neither party is liable for a failure to perform caused by an event beyond its reasonable control, including natural disaster, war, epidemic or government action. The affected party shall notify the other party within 5 business days.

17. GOVERNING LAW

This Agreement is governed by and construed in accordance with the laws of Germany, without regard to its conflict of law rules.

18. DISPUTE RESOLUTION

The parties shall attempt in good faith to resolve any dispute by negotiation between their senior managers. Failing resolution within 30 days, the dispute shall be finally settled by arbitration under the rules of the German Arbitration Institute, seated in Hamburg.

19. NOTICES

All notices under this Agreement must be in writing and sent to the addresses above.

Signed on 22 August 2024 for and on behalf of the parties.